

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 05/05/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-00731

CASE NAME: DISCOVER BANK VS. DAVID HART

*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION

FILED BY: DISCOVER BANK

***TENTATIVE RULING**

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$1,925.61, less any credits for payments received, plus court costs of \$296.02.

Defendant made total payments in the amount of \$760; thus, the judgment amount should be

\$1,461.63.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,461.63.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-02267

CASE NAME: CITIBANK, N.A. VS. KARLA GOMEZ

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION**

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Plaintiff has filed a Motion to enter judgment pursuant to stipulation but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process and has not filed any pleadings with the court. Proper service of this Motion would require personal service or, if using mail, then an acknowledgment of receipt from Defendant.

Disposition

Motion continued to 7/28/26, 9 a.m.

Plaintiff to provide notice to Defendant of Motion and date of hearing.

3. 9:00 AM CASE NUMBER: L24-06130

**CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. ROSENDO RAMIREZ
GARCIA**

***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings against Defendant Doroteo Ramirez. The motion was timely served by mail on Defendant. The Motion is unopposed.

Background

The cause of action is one of subrogation, where Plaintiff reimbursed its policy holder for an event in which Defendant is alleged to have negligently permitted another person driver her vehicle and cause damage to the policy holder.